

The Citizenship Rules, 2009

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Union of India - Act

The Citizenship Rules, 2009

UNION OF INDIA

India

The Citizenship Rules, 2009

Rule THE-CITIZENSHIP-RULES-2009 of 2009

Published on 25 February 2009

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The Citizenship Rules, 2009

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Last Updated 7th December, 2018

In exercise of the powers conferred by section 18 of the Citizenship Act, 1955 (57 of 1955

), the Central Government hereby makes the following rules, namely:--

Part I ? Preliminary

1.

Short title and commencement

.-(1) These rules may be called the Citizenship Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.-In these rules, unless the context otherwise requires,--

(a)

"Collector" means the officer-in-charge of the revenue administration of a district and includes a Deputy Commissioner or District Magistrate, wherever so functioning;

(b)

"Form" means a Form appended to Schedule I to these rules;

(c)

"Schedule" means a Schedule annexed to these rules;

(d)

"section" means a section of the Citizenship Act, 1955 (57 of 1955

).

Part II ? Application For Citizenship

3.

Application for registration of birth under section 4

.-A person may submit an application for registration of birth of his minor child born outside India in terms of sub-section (1) of section 4 in Form I to the Indian consulate in the country, where such child was born, together with a declaration that the child does not hold the passport of any other country.

4.

Application for registration under clause (a) of sub-section (1) of section 5

.-An application from a person of Indian origin for registration as a citizen of India under clause (a) of sub-section (1) of section 5 shall not be entertained unless--

(a)

the application is made in Form II;

(b)

he gives an undertaking in writing that he shall renounce the citizenship of his country in the event of his application being sanctioned;

(c)

he is ordinarily resident in India for a period of at least seven years on the date of making application; and

(d)

he makes the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955.

5.

Application for registration under clause (c) of sub-section (1) of section 5

.- (1) An application from a person, who is married to a citizen of India, for registration as a citizen of India under clause (c) of sub-section (1) of section 5 shall not be entertained unless--

(a)

the application is made in Form III;

(b)

he gives an undertaking in writing that he shall renounce the citizenship of his country in the event of his application being sanctioned;

(c)

on the date of making the application he,--

(i)

has been ordinarily a resident of India; or

(ii)

has been in the service of the Government of India, at least for a period of seven years; and

(d)

he makes the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955.

Explanation .-In computing the period of seven years, any broken period of residence and service under sub-clauses (i) and (ii) of clause (c) shall be included in the period specified therein.

(2)

The Central Government may, in consideration of the special circumstances, exempt, any foreign national married to such an Indian citizen who is in the service of the Government in India, from the operation of clause (c) of sub-rule (1).

(3)

The Central Government may, in consideration of the special circumstances, exempt, any foreign national who has been married to an Indian citizen for not less than seven years and who has visited India at least once in a year during any seven years out of nine years, from the operation of clause (c) of sub-rule (1).

6.

Application for registration under clause (d) of sub-section (1) of section 5

.-An application for registration as a citizen of India under clause (d) of sub-section (1) of section 5, for a minor child of a person who is a citizen of India, shall not be entertained unless--

(a)

the application is made in Form IV; and

(b)

the parent of such minor child declares that he is the legal guardian of the child.

7.

Application for registration under clause (e) of sub-section (1) of section 5

.-An application from a person for registration as citizen of India under clause (e) of sub-section (1) of section 5 shall not be entertained unless--

(a)

the application is made in Form V;

(b)

he gives an undertaking in writing that he shall renounce the citizenship of his country in the event of his application being sanctioned; and

(c)

he makes the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955.

8.

Application for registration under clause (f) of sub-section (1) of section 5

.-An application from a person for registration as a citizen of India under clause (f) of sub-section (1) of section 5 shall not be entertained unless--

(a)

the application is made in Form VI;

(b)

he gives an undertaking that he shall renounce the citizenship of his country in the event of his application being sanctioned;

(c)

[he is ordinarily resident in India for a period of at least twelve months on the date of making application; and]

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

(d)

he makes the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955.

[Provided that the period of twelve months referred to in clause (c) may, under special circumstances, be relaxed by the Central Government under sub-section (1A) of section 5 of the Citizenship Act, 1955.]

[Inserted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

9.

Application for registration under clause (g) of sub-section (1) of section 5

.-An application from a person registered as an [Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

, for registration as a citizen of India under clause (g) of sub-section (1) of section 5, shall not be entertained unless--

(a)

the application is made in Form VII;

(b)

he gives an undertaking in writing that he shall renounce the citizenship of his country in the event of his application being sanctioned;

(c)

[he has been an Overseas Citizen of India cardholder for a period of at least five years and is ordinarily resident in India for a period of twelve months on the date of making application; and]

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

(d)

he makes the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955.

[Provided that the period of twelve months referred to in clause (c) may, under special circumstances, be relaxed by the Central Government under sub-section (1A) of section 5 of the Citizenship Act, 1955.]

[Inserted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

10.

Application for grant of citizenship by naturalisation under sub-section (1) of section 6

.-An application from a person for naturalisation as a citizen of India under sub-section (1) of section 6 shall not be entertained unless--

(a)

the application is made in Form VIII;

(b)

he gives an undertaking in writing that he shall renounce the citizenship of his country in the event of his application being sanctioned; and

(c)

the application is accompanied with--

(i)

a duly stamped affidavit verifying the correctness of the statements made in the application alongwith two affidavits from Indian citizens testifying the character of the applicant; and

(ii)

a certificate depicting that the applicant has adequate knowledge of one of the languages specified in the Eighth Schedule to the Constitu-tion of India.

Explanation 1.-The applicant shall be considered to have adequate knowledge of the concerned language if he can speak or read or write that language.

Explanation 2.-The certificate may either be issued by a recognised educational institution or a recognised public organisation or from two persons of the locality or district of the applicant who are citizens of India.

11.

Authority to which application may be made

.- (1) An application for registration under section 5 or naturalisation under section 6 shall be made to the Collector within whose jurisdiction the applicant is ordinarily resident.

(2)

On the receipt of the application, the Collector shall issue an acknowledgement in Form IX.

(3)

On being satisfied about the correctness of the particulars of application and before forwarding the application to the State Government or the Union territory Administration, as the case may be, the Collector shall administer to the applicant, who has applied for grant of citizenship by registration, the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955.

[Provided that in respect of an application submitted by any person belonging to minority community in Afghanistan, Bangladesh and Pakistan (namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians), in the absence of the Collector, an officer not below the rank of the Sub-Divisional Magistrate authorised in writing by the Collector, may administer to the applicant the oath of allegiance.]

[Inserted by Notification No. G.S.R. 1168 (E), dated 23.12.2016 (w.e.f. 25.2.2009).]

Part III ? Issue Of Certificate Of Citizenship And Maintenance Of Registers

12.

Forwarding of applications to Central Government

-(1) The Collector shall forward every application received by him under clauses (a) , (c) , (d) , (e) , (f) and (g) of sub-section (1) of section 5 or sub-section (1) of section 6 to the State Government or the Union territory Administration, as the case may be, within a period of sixty days from the date of its receipt, along with a report as to whether the applicant--

(a)

satisfies all the conditions laid down in the relevant clauses of section 5 or section 6;

(b)

has an intention to make India his permanent home;

(c)

has signed the oath of allegiance as specified in the Second Schedule to the Citizenship Act, 1955; and

(d)

is of good character and is a fit and proper person to be registered or naturalised, as the case may be, as a citizen of India.

(2)

The State Government or the Union territory Administration, as the case may be, shall forward the application along with its recommendation and the report of the Collector, to the Central Government within a period of thirty days from the date of receipt of the report of the Collector under sub-rule (1):

Provided that if for sufficient reasons, the Collector or the State Government or the Union territory Administration, as the case may be, is unable to forward the application within the period specified in sub-rule (1) or sub-rule (2), the same may be forwarded to the State Government or the Union territory Administration or the Central Government, as the case may be, after the expiry of the period so specified but not exceeding ninety days along with the reasons for delay.

(3)

All the applications pending with the Collector or the State Government or the Union territory Administration, as the case may be, on the date of commencement of these rules shall be dealt with in the manner specified in sub-rules (1) and (2).

(4)

If the application is not forwarded by the Collector or the State Government or the Union territory Administration, as the case may be, to the Central Government within a period of ninety days from the date of receipt of the application, the applicant may represent to the Central Government in the Ministry of Home Affairs by enclosing a copy of the acknowledgement issued by the Collector.

(5)

The Central Government on receipt of the representation under sub-rule (4), may take up the matter with the State Government or the Union territory Administration, as the case may be, to expedite its recommendation on the application for grant of citizenship.

13.

Scrutiny of applications by Central Government

.-The Central Government may,--

(a)

on receipt of the applications from the State Government or the Union territory Administration, as the case may be, complete in all respects; and

(b)

on being satisfied after making such inquiry as it considers necessary for ascertaining the suitability of the applicant, that he is a fit and proper person to be registered or naturalised, as the case may be, grant him the citizenship of India.

14.

Grant of certificate of registration

-(1) Every person who is registered as a citizen of India under clause (a) , (c) , (d) , (e) or (f) of sub-section (1) of section 5 shall be issued a certificate of registration in Form X signed by an officer not below the rank of Under Secretary to the Government of India.

(2)

Every person who is registered as a citizen of India under clause (g) of sub-section (1) of section 5 shall be issued a certificate of registration in Form XI signed by an officer not below the rank of Under Secretary to the Government of India.

(3)

A copy of the certificate of registration issued under this rule, shall be preserved for the purposes of record by the issuing authority.

15.

Grant of certificate of naturalisation

-(1) Every person who by naturalisation is made a citizen of India under sub-section (1) of section 6, shall be issued a certificate of naturalisation in Form XII signed by an officer not below the rank of Under Secretary to the Government of India.

(2)

A copy of the certificate of naturalisation issued under this rule, shall be preserved for the purposes of record by the issuing authority.

16.

Oath of allegiance for naturalisation

-(1) The oath of allegiance, under sub-section (2) of section 6 by a person to whom the certificate of naturalisation is granted, shall be subscribed in Form XII and the oath of allegiance so subscribed shall be endorsed on the certificate of naturalisation to which it relates.

(2)

The oath of allegiance under sub-rule (1) shall be subscribed within a period of three months from the date of grant of certificate of naturalisation to which it relates, or within such extended period as the authority granting the certificate may permit, and in case the oath is not taken within the said period, the certificate shall be of no effect:

Provided that no permission shall be given under this sub-rule unless a statement to that effect is endorsed on the certificate and signed by the officer authorised under rule 15 to sign the certificate of naturalisation.

(3)

The oath of allegiance required under sub-rule (1) shall be registered by such person and in such place as the authority granting the certificate may direct.

(4)

When the oath of allegiance is registered in accordance with any direction given under sub-rule (3), the authority, which registers it shall cause a copy of the oath and the certificate of naturalisation to which it relates to be sent to the Secretary to the Government of India in the Ministry of Home Affairs.

17.

Register of citizens

.-The Central Government shall maintain a register containing the names and other details of the persons registered or naturalised as citizen of India--

(a)

under clauses (a) , (e) and (f) of sub-section (1) of section 5, in Form XIII;

(b)

under clause (c) of sub-section (1) of section 5, in Form XIV;

(c)

under clause (d) of sub-section (1) of section 5, in Form XV;

(d)

under clause (g) of sub-section (1) of section 5 in Form XVI; and

(e)

under sub-section (1) of section 6 in Form XVII.

18.

Maintenance of registers and connected papers

-(1) Every entry made in the register maintained under rule 17 shall be numbered consecutively and each entry shall relate to one person only.

(2)

Every entry made in the register maintained under rule 17 shall be authenticated by the officer authorised to issue the certificate after a person is registered or as the case may be, naturalised as a citizen of India.

(3)

The register, all applications and papers connected therewith shall be preserved as permanent record.

Part IV ? Provisions As To Citizenship Or India For Persons Covered By Assam Accord

19.

Registering authority for the purpose of sub-section (3) of section 6-A and form for registration

-(1) The Central Government may, for the purposes of sub-section (3) of section 6-A, appoint an officer not below the rank of Additional District Magistrate as the registering authority for every district of the State of Assam.

(2)

[An application for registration under sub-section (3) of section 6A shall be made in Form XVIII, by the person to the registering authority for the district in which such person is ordinarily a resident within a period of thirty days from the date of receipt of order of the Foreigners Tribunal declaring such person as a foreigner;

Provided that the registering authority may, for reasons to be recorded in writing, extend the said period to such further period as may be justified in each case but not exceeding sixty days].

(2A)

[A person who has been declared as a foreigner by the Foreigners Tribunal prior to 16th July, 2013 and has not been registered under sub-section (3) of Section 6A for the reason of non-receipt of order of the Foreigners Tribunal or refusal by the registering authority to register such person as a foreigner on account of delay may, within a period of thirty days from the date of receipt of the order passed by the Foreigners Tribunal, or, from the date of publication of this notification, make an application for registration in Form XVIII to the registering authority of the district in which such person is ordinarily a resident:

[Inserted by Notification No. G.S.R. 488 (E) dated 16.7.2013 (w.e.f. 25.2.2009)]

Provided that the registering authority may, for reasons to be recorded in writing, extend the said period to such further period as may be justified in each case but not exceeding one hundred eighty days].

(3)

The registering authority shall, after entering the particulars of the application in a register in Form XIX, return a copy of the application under his seal to the applicant.

(4)

One copy of every application received during a quarter shall be sent by the registering authority to the Central Government and the State Government of Assam along with a quarterly return in Form XX.

(5)

[***]

[Omitted by Notification No. G.S.R. 488 (E) dated 16.7.2013 (w.e.f. 25.2.2009)]

20.

Reference to Tribunals

.-Where, in case of a person seeking registration under sub-section (3) of section 6-A,--

(a)

any question arises as to whether such person fulfils any requirement contained in the said sub-section; or

(b)

the opinion of the Tribunal constituted under the Foreigners (Tribunals) Order, 1964 in relation to such person does not contain a finding with respect to any requirement contained in the said sub-section other than the question that he is a foreigner, then, the registering authority shall, within a period of fifteen days of the receipt of the application under sub-rule (2) of rule 19, make a fresh reference to the Tribunal in this regard.

21.

Jurisdiction of Tribunal

.-The Tribunal constituted under the Foreigners (Tribunals) Order, 1964 having jurisdiction over a district or part thereof in the State of Assam shall have jurisdiction to decide references, received from the registering authority of that district or part thereof in relation to all references made under sub-section (3) of section 6-A.

22.

Declaration under sub-section (6) of section 6-A

.-The declaration under sub-section (6) of section 6-A shall be made in Form XXI to the District Magistrate of the area within whose jurisdiction such person is ordinarily resident.

Part V ? Renunciation And Deprivation Of Citizenship Of India

23.

[Declaration of renunciation of citizenship.

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

(1)

A declaration of renunciation of citizenship of India under sub-section (1) of section 8 shall be made by a citizen of India in Form XXII.

(2)

On receipt of the declaration of renunciation of citizenship of India under sub-rule (1), an acknowledgement in Form XXIII shall be issued by the concerned Authority referred to in rule 38, to the declarant.

(3)

On being satisfied about the correctness of the particulars of the declaration made under sub-rule (1), the declaration shall be registered by the concerned Authority referred to in sub-rule (2) and a Certificate of Renunciation of Indian citizenship in Form XXIV shall be issued by him to the declarant.

(4)

The concerned Authority referred to in sub-rule (2) shall maintain a register in Form XXIV-A containing the details of declarants whose declaration of renunciation of citizenship are registered under this rule.]

[Substituted by Notification No. G.S.R. 488 (E) dated 16.7.2013 (w.e.f. 25.2.2009)]

24.

Declaration of intention to resume Indian citizenship

.- (1) A declaration of intention to resume citizenship under the proviso to sub-section (2) of section 8 shall be made in Form XXV, within a period of one year of attaining the full age and the oath of allegiance as specified in the Second Schedule to the Citizenship Act shall be subscribed and duly attested.

(2)

Every such declaration shall be registered in the Ministry of Home Affairs, Government of India.

(3)

No such declaration shall be registered unless the declarant has taken the oath of allegiance given at the end of the Form.

(4)

Every person who makes such declaration shall be issued a certificate of resumption of citizenship of India in Form XXVI, signed by an officer not below the rank of Under Secretary to the Government of India, and where such a certificate is issued, a copy thereof shall be preserved for the purpose of record by the issuing authority.

(5)

The Central Government in the Ministry of Home Affairs shall maintain a register in Form XXVII containing the names of persons whose declaration of resumption of citizenship of India are registered under this rule.

25.

Notice to be given before deprivation of citizenship

.- (1) When it is decided to make an order under section 10 depriving a person of his citizenship of India, a notice under sub-section (4) of that section shall be given--

(a)

in a case where the person's whereabouts is known, by causing the notice to be delivered to him personally or by sending it to him by post; or

(b)

in a case where the person's whereabouts is not known, by sending it to his last known address.

(2)

On receipt of the notice under sub-rule (1), the effected person may make an application for referring his case to a Committee of Inquiry under sub-section (5) of section 10,--

(a)

if that person is in India at the time when the notice is given to him, within a period of three months from the date of the

notice; or

(b)

in any other case, within such time being not less than three months from the date of the notice, as the Central Government may specify in the notice:

Provided that the Central Government may, in special circumstances and for reasons to be recorded in writing, extend the period within which the application under this rule may be made.

(3)

On receipt of the application under sub-rule (2), the Central Government shall refer the case to the Committee of Inquiry for its decision.

26.

Committee to follow procedure specified in Schedule II in holding inquiry

.-A Committee of Inquiry appointed under section 10 shall, while holding the inquiry under sub-section (6) of that section, follow the procedure laid down in Schedule II.

27.

Order depriving a person of citizenship of India to be published

.-Every order made under section 10, depriving a person of the citizenship of India, shall be published in the Official Gazette.

28.

Surrender and cancellation of certificate in case of deprivation of citizenship

.- (1) Where an order has been made depriving a person registered or naturalised in India of his citizenship of India, the person so deprived or any other person in possession of the certificate of registration or naturalisation shall, when required by notice in writing given by the Central Government, deliver the said certificate to such person and within such period as may be specified in the notice.

(2)

On the certificate being delivered, it shall be cancelled and in case the certificate is not delivered, then, the Central Government may direct that it shall, without prejudice to any action which may be taken under sub-rule (3), be treated as cancelled.

(3)

If any person fails to comply with any notice given under sub-rule (1), he shall be liable to a fine, which may extend to one thousand rupees.

Part VI ? [Overseas Citizen of India cardholder]

[Substituted "overseas citizenship of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

- registration, Renunciation And Cancellation

29.

Application for registration under section 7-A

.- (1) An application for registration as an [Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7-A shall be made in Form XXVIII.

(2)

[Every person, including a minor, eligible to be registered as Overseas Citizen of India Cardholder under section 7A may submit separate application under sub-rule(1).]

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

(3)

[In case of a minor, the application form may be signed by either of the parents or by the person to whom the legal custody of the minor has been granted or by the legal guardian of such minor, as the case may be.

(4)

In case of a person referred to in clause (d) of sub-section (1) of section 7A, who is a spouse of foreign origin of a citizen of India or a spouse of foreign origin of an Overseas Citizen of India Cardholder, only one such living spouse fulfilling the conditions laid down under that clause shall be eligible to apply for registration as Overseas Citizen of India Cardholder.]

[Inserted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

31.

Authority to which applications are to be made

.-An application under rule 29 [* * *]

[Omitted "or as the case may be, rule 30" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]
shall be made in duplicate--

(a)

[in India--

(i)

to the Foreigners Regional Registration Officer (FRRO) as may be specified by the Central Government; or

(ii)

to the Foreigners Division, Ministry of Home Affairs;]

(b)

outside India--

(i)

to the Indian Mission or Post having jurisdiction over the country of which an applicant is a citizen; or

(ii)

where he is not in the country of his citizenship, to the Indian Mission or Post having jurisdiction over the country of which the applicant is ordinarily resident.

32.

Scrutiny of applications

.- (1) The Central Government may, after a preliminary inquiry and on being apparently satisfied that there is no adverse information available against the applicant, register the person as an [Overseas Citizen of India cardholder]
[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]
as soon as possible but not later than a period of thirty days and the case shall be placed for post verification of the antecedents.

[(1-A) In the case of a person referred to in clause (d) of sub-section (1) of section 7A of the Citizenship Act, 1955, who is a spouse of foreign origin of a citizen of India or a spouse of foreign origin of an Overseas Citizen of India cardholder, the registration as an Overseas Citizen of India cardholder of such person shall be subject to prior security clearance from a competent authority in India as provided under the said clause (d) of sub-section (1) of section 7A of the Citizenship Act, 1955 [and only one living spouse duly fulfilling the conditions laid down in said clause (d) of sub-section (1) of section 7A shall be registered as an Overseas Citizen of India Cardholder.]

[Inserted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

]

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

(2)

The Central Government may, in case of any adverse information against the applicant, and after making such inquiry as it considers necessary, approve or reject the grant of registration within a period of four months from the date of receipt of the application.

33.

Certificate of registration and maintenance of register or persons under section 7-A

.- (1) Every person, who is registered as an [Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7-A shall be issued a certificate of registration in Form XXIX, signed by an officer not below the rank of Under Secretary to the Government of India.

(2)

A copy of the certificate of [Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

issued under this rule, shall be preserved for the purposes of record by the issuing authority.

(3)

The issuing authority shall maintain, a register containing names and other details of the persons registered as [Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7-A in Form XXX and a copy thereof shall be forwarded to the Ministry of Home Affairs in the first week of every month.

[34. Declaration of renunciation of Overseas Citizen of India card . - (1) A declaration of renunciation of the card registering a person as an Overseas Citizen of India cardholder under section 7C shall be made in Form XXXI, accompanied with the original certificate of registration of Overseas Citizen of India cardholder, to the [concerned Indian Mission or Post or the concerned Foreigners Regional Registration Officer]

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

, who in turn, shall forward the same to the authority which issued the said certificate of registration.

(2)

On receipt of the declaration of renunciation of the card registering as an Overseas Citizen of India cardholder, the issuing authority shall issue an acknowledgement in Form XXXII and remove the name of the declarant from the register of Overseas Citizen of India cardholder.]

35.

Cancellation of registration as [Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

.- (1) Where an order has been made cancelling the registration as an [Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

of India, the person whose registration has been cancelled or any other person in possession of the certificate of registration shall, when required by notice in writing by the Central Government, deliver the said certificate to such person and within such period as may be specified in the notice.

(2)

On the certificate being delivered, it shall be cancelled and in case the certificate is not delivered, then the Central Government may direct that it shall be treated as cancelled.

(3)

The issuing authority shall make an appropriate entry in the register maintained under sub-rule (3) of rule 33 stating the cancellation of registration as [Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

and a copy thereof shall be submitted to the Ministry of Home Affairs in the first week of every month.

Part VII ? Miscellaneous

36.

Variation in Form of application or declaration

.- Where a person wishes to make an application or declaration under any of these rules and the form referred to in the rule is, in the opinion of the Central Government or other authority to whom the application is to be sent for registration, unsuitable to the particular case, the Central Government or that other authority, as the case may be, may authorise the application or declaration being made in some other form.

37.

Certificate of citizenship in case of doubt

.- A certificate of citizenship in case of doubt under section 13 may be issued in Form XXXIII and shall be signed by an officer not below the rank of Under Secretary to the Government of India.

38.

Authority before whom application or declaration may be made or by whom the oath of allegiance may be administered

.- (1) An application or declaration made in accordance with these rules shall not be accepted or registered and the oath of allegiance required by sub-section (2) of section 5 or sub-section (2) of section 6 shall be of no effect, unless it is signed in the presence of, or administered by,--

(i)

the Collector, Deputy Commissioner, or the District Magistrate in India;

(ii)

any Consular officer as defined in clause (d) of rule 2 of the Citizens (Registration at Indian Consulates) Rules, 1956 outside India:

Provided that if the applicant or declarant is serving in India in the naval, military or air forces of the Union, the application or declaration may be signed in the presence of, or the oath administered by, any officer holding a

Commission in any of these forces.

[Provided further that in respect of an application submitted by any person belonging to minority community in Afghanistan, Bangladesh and Pakistan (namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians), in the absence of the Collector, Deputy Commissioner or the District Magistrate, the application or declaration may be signed in the presence of, or the oath administered by, an officer not below the rank of the Sub-Divisional Magistrate authorised in writing by the Collector, or Deputy Commissioner or the District Magistrate, as the case may be.]

[Inserted by Notification No. G.S.R. 1168 (E), dated 23.12.2016 (w.e.f. 25.2.2009).]

(2)

Notwithstanding anything contained in rules 11 and 12, an application under sub-rule (3) of rule 5 for registration under clause (c) of sub-section (1) of section 5 as an Indian citizen from a foreign national married to an Indian citizen may be made to the Indian Consulate or Embassy or Mission where he is a resident, who in turn shall forward it to the Central Government in the Ministry of Home Affairs for consideration.

39.

Certificate of documents

.-A document may be certified to be a true copy of a document by means of a statement in writing to that effect signed by any of the persons before whom the application or declaration may be made or whom the oath of allegiance may be administered or by any officer now below the rank of an Under Secretary to the Government of India in the Ministry of Home Affairs.

40.

Authority to determine acquisition of citizenship of another country

.- (1) For the purpose of sub-section (2) of section 9, the Central Government may determine the issues as to whether, when or how any citizen of India had acquired the citizenship of another country.

(2)

The Central Government while determining any such issues shall have due regard to the rules of procedure specified in Schedule III.

41.

Fees

.-The fees specified under column (3) or, as the case may be, under column (4) of the Schedule IV shall be levied and collected in respect of the matters referred to under column (2) of that Schedule.

42.

Authority for revision of an order made under the Act by prescribed authority

.-If an application is made by a person aggrieved by an order made under the provisions of the Act, the application shall be disposed off after giving a reasonable opportunity to the person affected to present his case, by an authority one rank higher than the authority specified for disposal of application against the order of which revision is sought.

43.

Repeal and saving

.-The Citizenship Rules, 1956 is hereby repealed:

Provided that such repeal shall not affect--

(a)

the previous operation of the said rules or anything duly done or suffered thereunder; or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred under the said rules; or

(c)

any penalty, forfeiture or punishment incurred in respect of any offence committed against the said rules; or

(d)

any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced any such penalty, forfeiture, or punishment, may be imposed as if the said rules had not been repealed.

I

[Refer rule 2(c)]

FORM I

(Refer rule 3)

THE CITIZENSHIP RULES, 2009

Application for registration of birth of a minor child at an Indian consulate under section 4 (1) of the Citizenship Act, 1955

Note: Please write/print in Block Letters

Part I

Photograph

1. Full name of the minor child:

.....

2. Sex:

.....

3. Place & Country Birth :

.....

4. Date of birth:

.....

5. Mark of identification:

.....

6. Present address:

.....

7. (i) Father's full name:

.....

(ii) Citizen of India by birth/descent/registration*/naturalization *:

.....

(iii) Occupation:

.....

(iv) Passport particulars:

.....

(a) Country

.....

(b) Number

.....

8. (i) Mother's full name:

.....

(ii) Citizen of India by birth/descent/registration*/naturalization *:

.....

(iii) Occupation:.....

.....

(iv) Passport particulars:

.....

(a) Country

.....

(b) Number

.....

Part II ? 9. I,..... a citizen of India and a parent of.....to whom the foregoing particulars relate, hereby apply on behalf of my child for the registration of his birth.

Date.....

Signature of parent.....

10. I,.....being the parent of do solemnly and sincerely declare that my child to whom the foregoing particulars relate does not hold the passport of any other country.

11. I,do solemnly and sincerely declare that the foregoing particulars stated in the application are true and I make this solemn declaration conscientiously believing the same to be true.

Date.....

Signature of parent.....

Made and subscribed this.....day of.....20.....before me.

Signature

[If a citizen of India by registration or naturalization, please mention to the number and date of the certificate of registration or naturalization, as the case may be.]

.....

Designation

[Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009, before whom the declaration is made or oath of allegiance is taken (i.e. any consular officer as defined in rule 2 (d) of the Citizens(Registration at Indian Consulates) Rules, 1956.]

.....

(This form complete in all respect shall be submitted in duplicate to the Indian Mission/Post in the country in which the applicant is ordinarily resident.)

Documents to be attached with the application by the applicant

1. A copy of the birth certificate of the child.
2. A copy of the passport of both the parents.
3. A copy of the certificate of Indian citizenship if acquired by registration/naturalisation.
4. A copy of the marriage certificate of the parents.

FORM II

[Refer rule 4(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for registration as a citizen of India under section 5 (1) (a) of the Citizenship Act, 1955 made by a person of Indian origin

Note: Please write/print in Block Letters

Part I

Photograph

1. I,(mention full name) resident of (complete postal address)..... of full age and capacity and was born at (with Tehsil, District, State and Country)..... on.....and is a citizen of
2. My father's full name is.....and he was born at (with Tehsil, District, State and Country)on.....and is a citizen of.....
3. My mother's full name is and she was born at with Tehsil, District, State and Country).....on.....and is a citizen of.....
4. My wife's/husband's full name is and he/she was born at (with Tehsil, District, State and Country).....on.....and is a citizen of.....

5. Details of residence inIndia:

(a) Date of entry inIndia

.....

(b) I have resided inIndiacontinuously for a period of 12 months immediately preceding the date of application.

Yes/No

(c) During the eight years immediately preceding the said period of twelve months, I have resided inIndiafor period amounting in the aggregate to not less than six years.

Yes/No

S. No.

Detailswith address of residence inIndiafor the last nine years

From

To

YearsMonths

1

2

3

4

5

6. (a) Sex:

.....

(b) Occupation:

.....

(c) If in service, address of employer:

.....

(d) Mark of identification:

.....

6A. [Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No

[Substituted by Notification No. G.S.R. 1158(E), dated 3.12.2018 (w.e.f. 25.2.2009).]

If, yes, please specify

7. Passport particulars:

(a) Country:

.....

(b) Number:

.....

8. Visa valid up to:

.....

8A. [

[Inserted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

Religion

9. Details of family members who are staying in India with the applicant:

S. No.

Name

Present Address

Relationship

Age

1

2

3

4

5

10. Details of criminal proceedings, if any:

S. No.

Nature of the criminal proceedings

Date and place of registering the case

Present status of the case

Judgment of the court

1

2

3

4

5

Part II ? 11. I have/have not previously renounced or been deprived of the citizenship of India.

(If the applicant has renounced his Indian citizenship, here state the date on which the declaration of renunciation was made; or if he has been deprived of his citizenship, state the date on which and the authority by whom, the order of deprivation was made.)

12. I have/have not previously applied for registration as a citizen of India and the application has/has not been rejected.

13. I hereby declare that my intention is to make India my permanent home and undertake that I shall renounce the citizenship of my country in the event of my application being sanctioned.

14. I,.....do solemnly and sincerely declare that the foregoing particulars, stated in this application are true and I make this solemn declaration conscientiously believing the same to be true.

Date:.....

Signature.....

Made and subscribed this.....day of.....20.....before me.

Signature.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

Designation.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

15. I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation, that I am a householder, and that I am not the solicitor or agent of.....I vouch for the correctness of the statement made by.....in his application for Indian citizenship.

Signature.....

Name.....

Full postal address.....

.....

Oath of Allegiance

I,do solemnly affirm and swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully observe the laws of India and fulfill my duties as a citizen of India.

Signature.....

Affirmed/Sworn and subscribed this.....day of.....20.....before me.

Signature.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken(i.e. the Collector, Deputy Commissioner, District Magistrate)]

Designation.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

(This Form complete in all respects shall be submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or the Union territory Administration, as the case may be)

Documents to be attached with the application by the applicant

1. A copy of the valid Foreign Passport.

2. A copy of the valid Residential Permit.

3. Evidence of the date of birth of the parents viz. a copy of the passport or birth certificate.

4. A copy of Bank challan in original amounting to Rs.500/- payable towards declaration and oath of allegiance deposited in the State Bank of India under Head No."0070-Other Administrative Services-Other Services-receipts under the Citizenship Act".

FORM III

[Refer rule 5(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for registration as a citizen of India under section 5(1)(c) of the Citizenship Act, 1955 made by a person who

is/has been married to a citizen of India

Note: Please write/print in Block Letters

Part I

Photograph

1. I,(mention full name) resident of
(complete postal address)..... of full age and capacity and was born at (with Tehsil, District, State and Country)..... on.....and is a citizen of

2. My father's full name is.....and he was born at (with Tehsil, District, State and Country)
.....on.....and is a citizen of.....

3. My mother's full name is
..... and she was born at (with Tehsil, District, State and Country).....on.....and is a citizen of.....

4. I was married at (with Tehsil, District, State and Country).....on.....to Shri/Smt
.....(full name of husband/wife).

5. My husband/wife was born at (with Tehsil, District, State and country).....on.....and he/she is a citizen
of India by birth/descent/registration/naturalisation.....

6. My marriage subsists

Yes/No

7. Details of residence in India:

(a) Date of entry in India

.....

(b) I have resided in India continuously for a period of 12 months immediately preceding the date of application.

Yes/No

(c) During the eight years immediately preceding the said period of twelve months, I have resided in India for period
amounting in the aggregate to not less than six years.

Yes/No

Sl. No.

Details with address of residence in India for the last nine years

From

To

Years Months

1

2

3

4

5

8. (a) Sex:

.....

(b) Occupation:

.....

(c) If in service, address of employer:

.....

(d) Mark of identification:

.....

8A. [Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus,
Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No

[Substituted by Notification No. G.S.R. 1158(E), dated 3.12.2018 (w.e.f. 25.2.2009).]

If, yes, please specify]

9. Passport particulars:

(a) Country:

.....

(b) Number:

.....

10. Visa valid up to:

.....

11. Details of family members who are staying in India with the applicant:

S. No.

Name

Present Address

Relationship

Age

1

2

3

4

5

12. Details of criminal proceedings, if any:

S. No.

Nature of the criminal proceedings

Date and place of registering the case

Present status of the case

Judgment of the court

1

2

3

4

5

Part II ? 13. I have/have not previously renounced or been deprived of the citizenship of India.

(If the applicant has renounced his Indian citizenship, here state the date on which the declaration of renunciation was made; or if he has been deprived of his citizenship state the date on which and the authority by whom, the order of deprivation was made)

14. I have/have not previously applied for registration as a citizen of India and the application has/has not been rejected.

15. I hereby declare that my intention is to make India my permanent home and undertake that I shall renounce the citizenship of my country in the event of my application being sanctioned.

16. I,.....do solemnly and sincerely declare that the foregoing particulars stated in this application are true and I make this solemn declaration conscientiously believing the same to be true.

Date.....

Signature.....

Made and subscribed this..... Day.....of 20.....before me.

Signature.....

Designation.....

17. I, the undersigned hereby state that I am an Indian citizen otherwise than by naturalisation that I am householder, and that I am not the solicitor or agent ofI vouch for the correctness of the statements made by him in his application for Indian Citizenship.

Signature.....

Name.....

Full postal address.....

.....

Oath of Allegiance

I,do solemnly affirm and swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully observe the laws of India and fulfill my duties as a citizen of India.

Signature.....

Affirmed/Sworn and subscribed this.....day of.....20.....before me.

Signature.....

Designation.....

(This Form complete in all respects shall be submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or the Union territory administration, as the case may be.)

Documents to be attached with the application by the applicant

1. A copy of the Valid Foreign passport.
2. A copy of the Valid Residential Permit.
3. Evidence of his/her husband's/wife's Indian nationality viz. copy of Indian passport or birth certificate.
4. A copy of marriage certificate issued by the Registrar of Marriage.
5. A copy of Bank challan in original amounting to Rs.500/-towards declaration and oath of allegiance deposited in the State Bank of India under Head No."0070-Other Administrative Services-Other Services-receipts under the Citizenship Act".

FORM IV

[Refer rule 6(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for registration of a minor child under section 5(1) (d) of the Citizenship Act, 1955

Part I

Photograph

1. Full name of the minor child:

.....

2. Sex:

.....

3.Place

& Country Birth :

.....

4. Date of birth:

.....

5. Mark of identification:

.....

6. Present address:

.....

7. (i) Father's full name:

.....

(ii) Citizen of India by birth/descent/registration*/naturalization *:

.....

(iii) Occupation:

.....

(iv) Passport particulars:

.....

(a) Country

.....

(b) Number

.....

8. (i) Mother's full name:

.....

(ii) Citizen of India by birth/descent/registration*/naturalization *:

.....

(iii) Occupation:

.....

(iv) Passport particulars:

.....
(a) Country

.....
(b) Number

8A. [Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No

[Substituted by Notification No. G.S.R. 1158(E), dated 3.12.2018 (w.e.f. 25.2.2009).]

If, yes, please specify

8B. [

[Inserted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

Date of entry into India

9. Details of criminal proceedings, if any :

S. No.

Nature of the criminal proceedings

Date and place of registering the case

Present status of the case

Judgment of the court

1

2

3

4

5

Part II ? 10. I,.....,a citizen of India and a parent/guardian of.....to whom the foregoing particulars relate, hereby apply on behalf of my child for registration as a citizen of India.

11. I hereby declare that my intention is to make India as permanent home in respect of my child and undertake that I shall renounce the citizenship of his country on behalf of my child in the event of the application for grant of citizenship of India to my child being sanctioned.

Date.....

Signature of parent/guardian.....

12. I,.....do solemnly and sincerely declare that the foregoing particulars stated in the application are true and I make this solemn declaration conscientiously believing the same to be true.

Date.....

Signature of parent/guardian.....

Made and subscribed this.....day.....20.....before me.

Signature.....

[If a citizen of India by registration or naturalisation, please refer to the number and date of the certificate of registration or naturalisation as the case may be.]

Designation.....

[Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009 before whom the registration, declaration or oath of allegiance is made or taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

13. I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation, that I am a householder, and that I am not the solicitor or agent of....., I vouch for the correctness of the statements made byin his application for Indian citizenship.

Date.....

Signature.....

Name.....

Full post address.....

.....

(This Form complete in all respects shall be submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or the Union territory administration, as the case may be.)

Documents to be attached with the application by the applicant

1. A copy of the valid Foreign passport.
2. A copy of the valid Residential Permit.
3. Proof of Indian citizenship of both the parents viz. copy of Indian passport/birth certificate.
4. A copy of Bank challan in original amounting to Rs.250/-towards declaration deposited in the State Bank of India under Head No."0070-Other Administrative Services-Other Services-receipts under the Citizenship Act".
5. In case of guardian, enclose proof of guardianship.

FORM V

[Refer rule 7(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for registration as a citizen of India under section 5(1)(e) of the Citizenship Act, 1955 Made by a person whose parents are registered as citizens of India under section 5(1)(a) or section 6 (1)

Note: Please write/print in Block Letters

Part I

Photograph

1. I,..... (mention full name) resident of (complete postal address).....of full age and capacity and was born at (with Tehsil, District, State and Country).....onand is a citizen of.....
2. My father's full name isand he was born at (with Tehsil, District, State and Country).....on, and he was registered as a citizen of India under section 5(1)(a)/section 6(1) vide certificate No..... dated.....
3. My mother's full name is.....and she was born at (with Tehsil, District, State and Country).....on and she was registered as a citizen of India under section 5(1)(a)/section 6(1) vide certificate No..... dated.....
4. My wife's/husband's full name is and he/she was born at (with Tehsil, District, State and Country)onand is a citizen of.....

5. (a) Sex:

.....

(b) Occupation:

.....

(c) If in service, address of employer:

.....

(d) Mark of identification:

.....

[[5A. Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No

[Inserted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

If, yes, please specify

5B.

Date of entry into India.....]

6. Passport particulars:

.....

(a) Country:

.....

(b) Number:

.....

7. Visa valid up to:

.....

8. Details of family members who are staying in India with the applicant:

S. No.

Name

Present Address

Relationship

Age

1

2

3

4

5

9. Details of criminal proceedings, if any:

S. No.

Nature of the criminal proceedings

Date and place of registering the case

Present status of the case

Judgment of the court

1

2

3

4

5

Part II ? 10. I have/have not previously renounced or been deprived of the citizenship of India.

(If the applicant has renounced his or her Indian citizenship, here state the date on which the declaration of renunciation was made; or if he has been deprived of his citizenship, state the date on which and the authority by whom, the order of deprivation was made.)

11. I have/have not previously applied for registration as a citizen of India and the applicant has/has not been rejected.

12. I hereby declare that my intention is to make India my permanent home and I undertake that I shall renounce the citizenship of my country in the event of my application being sanctioned.

13. I,.....do solemnly and sincerely declare that the foregoing particulars, stated in this application are true and I make this solemn declaration conscientiously believing the same to be true.

Date:.....

Signature:.....

Made and subscribed thisday of20.....before me.

Signature.....

[*Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009 before whom the declaration is made or oath of allegiance is taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

Designation.....

14. I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation, that I am a householder, and that I am not the solicitor or agent of..... I vouch for the correctness of the statement made byin his application for Indian citizenship.

Signature.....

Name.....

Full Postal Address.....

.....

Oath of Allegiance

I,(here mention the name of the applicant) do solemnly affirm and swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully observe the laws of India and fulfill my duties as a citizen of India.

Signature.....

Affirmed/Sworn and subscribed thisday of20.....before me.

Signature.....

Designation.....

(This form complete in all respects shall be submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or Union territory administration, as the case may be).

Documents to be attached with the application by the applicant

1. A copy of the valid Foreign passport.
2. A copy of valid Residential permit.
3. Copies of Indian Citizenship Certificates issued under Section 5(1)(a) or 6(1) of the Citizenship Act, 1955 of both the parents.
4. A copy of Bank challan in original amounting to Rs.500/- towards declaration and oath of allegiance deposited in the State Bank of India under Head No."0070-Other Administrative Services-Other Services-receipts under the Citizenship Act".

FORM VI

[Refer rule 5(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for registration as citizen of India under section 5 (1) (f) of the Citizenship Act, 1955 made by a person who or either of the parents was a citizen of Independent India

Note: Please write/print in Block Letters

Part I

Photograph

1. I,.....

(mention full name) resident of (complete postal address).....of full age and capacity and was born at(with Tehsil, District, State and Country).....on.....and is a citizen of.....

2. My father's full name is.....and he was born at (with Tehsil, District, State and Country).....on.....and is a citizen of.....

3. My mother's full name is.....and she was born at (with Tehsil, District, State and Country).....on.....and is a citizen of.....

4. My wife's/husband's full name is.....and he/she was born at (with Tehsil, District, State and Country).....on.....and is a citizen of.....

5. I or either of my parents ceased to be an Indian citizen by virtue of section 9(1) consequent to my or their acquiring the citizenship of(name of country) on.....

6. [Details of residence in India :

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

(a) Date of entry in India

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

.....

(b) I have resided in continuously for a period of 12 months immediately preceding the date of application

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Yes/No

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Details of residence in India for the last five years :

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

{

S.No.

Details with address of residence in India

From

To

Years/ Months

1

2

3

4
5
|-
| 7. (a) Sex:
.....
(b) Occupation:
.....
-
(c) If in service, address of employer:
.....
-
(d) Mark of identification:
.....
-
7A. [Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus,
Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No
[Substituted by Notification No. G.S.R. 1158(E), dated 3.12.2018 (w.e.f. 25.2.2009).]
If, yes, please specify]
-
8. Passport particulars:
.....
-
(a)Country:
.....
-
(b)Number:
.....
-
9. Visa valid up to:
.....
-
10. Details of family members who are staying inIndiawith the applicant:
-
Sl. No.
Name
Present Address
Relationship
Age
-
1
2
3
4
5
-

| -
| 11. Details of criminal proceedings, if any:

| -
| Sl. No.
| Nature of the criminal proceedings
| Date and place of registering the case
| Present status of the case
| Judgment of the court

| -
| 1
| 2
| 3
| 4
5
}
}

Part II ? 12. I have/have not previously renounced or been deprived of the citizenship of India.

(If the applicant has renounced his Indian citizenship, here state the date on which the declaration of renunciation was made; or if he has been deprived of his citizenship state the date on which and the authority by whom, the order of deprivation was made.)

13. I have/have not previously applied for registration as a citizen of India and the application has/has not been rejected.

14. I hereby declare that my intention is to make India my permanent home and I undertake that I shall renounce the citizenship of my country in the event of my application being sanctioned.

15. I,.....do solemnly and sincerely declare that the foregoing particulars, stated in this application are true, and I make this solemn declaration conscientiously believing the same to be true.

Date:.....

Signature.....

Made and subscribed thisdayof20.....before me.

Signature.....

Designation.....

16. I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation, that I am a householder, and that I am not the solicitor or agent of.....I vouch for the correctness of the statement made by.....in his application for Indian citizenship.

Signature.....

Name.....

Full Postal Address.....

.....

Oath of Allegiance

I,do solemnly affirm and swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully observe the laws of India and fulfill my duties as a citizen of India.

Signature.....

Affirmed/Sworn and subscribed this.....day of20.....before me.

Signature.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009 before whom the declaration is made or oath of allegiance is taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

Designation.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009 before whom the declaration is made or oath of allegiance is taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

(This form complete in all respects shall be submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or Union territory administration, as the case may be).

Documents to be attached with the application by the applicant

1. A copy of valid Foreign Passport.
2. A copy of valid Residential Permit.
3. Evidence that the applicant or either of his parents was a citizen of Independent India viz. copy of passport or birth certificate.
4. A copy of Bank challan in original amounting to Rs.500/-towards declaration and oath of allegiance deposited in the State bank of India under Head No."0070-Other Administrative Services-Other Services-receipts under the Citizenship Act".

FORM VII

[Refer rule 9(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for registration as a citizen of India under section 5(1)(g) of the Citizenship Act, 1955 made by a person who is registered as an [Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7-A

Note: Please write/print in Block Letters

Part I

Photograph

1. I,.....(mention full name) resident of (complete postal address).....of full age and capacity and was born at (with Tehsil, District, State and Country).....on.....and is a citizen of.....
2. My father's full name is.....and he was born at (with Tehsil, District, State and Country).....on..... and is a citizen of.....
3. My mother's full name is and she was born at (with Tehsil, District, State and Country).....on..... and is a citizen of
4. My wife's/husband's full name is..... and he/she was born at (with Tehsil, District, State and Country).....on..... and is a citizen of

5. I was registered as an[Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7A vide certificate of registration No.....

dated.....

6. Details of residence in India :

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

(a) Date of entry in India

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

.....

(b) I have resided in India

continuously for a period of 12 months immediately preceding the date of application

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Yes/No

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Details of residence in India for the last five years after registration as Overseas Citizen of India cardholder:

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

SI

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

. No.

Details with address of residence in India for the last nine years

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

From

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

To

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Years Months

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

1

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

2

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

3

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

4

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

5

[Substituted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

7. (a) Sex:

.....

(b) Occupation:

.....

(c) If in service, address of employer:

.....

(d) Mark of identification:

.....

7A. [Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No

[Inserted by Notification No. G.S.R. 1158(E), dated 3.12.2018 (w.e.f. 25.2.2009).]

If, yes, please specify

8. Passport particulars:

.....

(a) Country:

.....

(b) Number:

.....

9. Visa valid up to:

.....

10. Details of family members who are staying in India with the applicant:

Sl. No.

Name

Present Address

Relationship

Age

1

2

3

4

5

11. Details of criminal proceedings, if any:

Sl. No.

Nature of the criminal proceedings
Date and place of registering the case
Present status of the case
Judgment of the court

1
2
3
4
5

Part II

12. I have/have not previously renounced or been deprived of the citizenship of India.

(If the applicant has been deprived of his Indian Citizenship, here State the date on which the declaration of renunciation was made; or if he has been deprived of his citizenship state the date on which and the authority by whom, the order of deprivation was made).

13. I have/have not previously applied for registration as a citizen of India and the application has/has not been rejected.

14. I hereby declare that my intention is to make India my permanent home and I undertake that I shall renounce the citizenship of my country in the event of my application being sanctioned.

15. I,.....do solemnly and sincerely declare that the foregoing particulars, stated in this application are true, and I make this solemn declaration conscientiously believing the same to be true.

Date:.....

Signature.....

Made and subscribed this.....day.....of20.....before me.

Signature.....

Designation.....

16. I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation, that I am a householder, and that I am not the solicitor or agent of..... I vouch for the correctness of the statement made by.....in his application for Indian citizenship.

Signature.....

Name.....

Full Postal Address.....

.....

Oath of Allegiance

I,.....do solemnly affirm and swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully observe the laws of India and fulfill my duties as a citizen of India.

Signature.....

Affirmed/Sworn and subscribed thisday of..... 20.....before me.

Signature.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009 before whom the declaration is made or oath of allegiance is taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

Designation.....

[Signature and designation of the officer authorized under rule 38 of the Citizenship Rules, 2009 before whom the declaration is made or oath of allegiance is taken (i.e. the Collector, Deputy Commissioner, District Magistrate)]

(This form complete in all respects shall be submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or the Union territory administration, as the case may be)

Documents to be attached with the application by the applicant

1. A copy of the valid Foreign Passport.

2. A copy of the certificate of registration as [Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7A.

3. A copy of Bank challan in original amounting to Rs.500/- towards declaration and oath of allegiance deposited in the State Bank of India under Head No."0070-Other Administrative Services-Other Services-receipts under the Citizenship Act".

FORM VIII

[Refer rule 10(1)(a)]

THE CITIZENSHIP RULES, 2009

Application for naturalisation as a citizen of India under section 6(1) of the Citizenship Act, 1955

Note: Please write/print in Block Letters

Part I

Photograph

1. Full name of the applicant:

.....

If commonly known by another name, enter such name here:

.....

2. Present address :

.....

.....

.....

3. (a) Sex:

.....

(b) Occupation:

.....

(c) If in service, address of employer:

.....

(d) Mark of identification:

.....

3A. [Do you belong to one of the minority communities from Afghanistan, Bangladesh and Pakistan, namely, Hindus, Sikhs, Buddhists, Jains, Parsis and Christians? Yes/ No

[Inserted by Notification No. G.S.R. 1158(E), dated 3.12.2018 (w.e.f. 25.2.2009).]

If, yes, please specify

4. Place and date of birth:

.....

5. Nationality by birth:

.....

6. Present nationality, if different:

.....

7. (a) Marital Status:

.....

(b) If married, give date and place of marriage and nationality of the spouse :

.....

(c) Husband's or wife's name:

.....

8. Father's full name is.....resident of.....and he was born at (with Tehsil, District, State and Country).....on

.....and is a citizen of.....

9. Mother's full name is.....resident of.....and he was born at (with Tehsil, District, State and Country)on

.....and is a citizen of.....on.....

10. Whether the applicant is a subject or citizen of any country where an Indian citizen is prevented by law or practice of that country from becoming a subject or citizen of that country by naturalization. :

.....

11. Principal languages of India known and extent of knowledge thereof with evidence

.....

12. Details of residence in India:

.....

(a) Date of entry in India:.....

.....

(b) I have resided in India continuously for a period of twelve months immediately preceding the date of application.

Yes/No

(c) During the fourteen years immediately preceding the said period of twelve months, I have resided in India for a period amounting in the aggregate to not less than eleven years.

Yes/No

Sl. No.

Details with address of residence in India for the last fourteen years

From

To

Years Months

1

2

3

4

5

13. Reasons for which applicant wishes to acquire Indian citizenship:

.....

.....

14. Passport particulars:

(a) Country:

.....

(b) Number:

.....

15. Visa valid up to:

.....

16. Details of family members who are staying in India with the applicant:

Sl. No.

Name

Present Address

Relationship

Age

1

2

3

4

5

17. Details of criminal proceedings, if any:

Sl. No.

Nature of the criminal proceedings

Date and place of registering the case

Present status of the case

Judgment of the court

1

2

3

4

5

18. Names and addresses of at least two persons whose affidavits testifying to the character of the applicant and the correctness of the statements made in this application are attached herewith:.....
.....

Part II ? 19. I have/have not previously renounced or been deprived of the citizenship of India.

(If the applicant has renounced his Indian citizenship, here state the date on which the declaration of renunciation was made; or if he has been deprived of his citizenship, state the date on which and the authority by whom, the order of deprivation was made.)

20. I have/have not previously applied for naturalisation as a citizen of India and the application has/has not been rejected.

21. I declare that my intention is to make India as permanent home and I undertake that I shall renounce the citizenship of my country in the event of my application being sanctioned.

22. I,.....do solemnly and sincerely declare that the foregoing particulars, stated in this application are true, and I make this solemn declaration conscientiously believing the same to be true.

Date:.....

Signature.....

Affidavit to accompany the application for a certificate of naturalisation under the Citizenship Act, 1955.

[Affidavits to be attested by Notary/Oath Commissioner I Magistrate.]

In the matter of the application for a certificate of naturalisation under the Citizenship Act, 1955, I.....son of residing atmake oath and do solemnly and sincerely affirm that the statements contained in my application here unto annexed are true to the best of my knowledge and belief.

If, at any time before a certificate is issued to me, the accuracy of any of the foregoing particulars is affected by an alteration in circumstances, I undertake to inform the Secretary to the Government of India in the Ministry of Home Affairs in writing forthwith.

Station.....

Date.....

Signature.....

Affidavits testifying the character of the applicant and the correctness of the statements made in the application.
(vide item 18)

In the matter of an application for a certificate of naturalisation under the Citizenship Act, 1955, made by I..... aged.....years, by occupation.....son ofresiding atmake oath and do solemnly and sincerely affirm that I am an Indian citizen otherwise than by naturalisation; that I am a householder; that I am not a solicitor or agent ofthat I have personal knowledge of, and intimate acquaintance with, the saidfor.....years; that the statements contained in his application for naturalisation are true to the best of my knowledge and belief.

I support 's application for naturalisation and I can vouch for his good character and loyalty.

Date.....

Signature.....

Name.....

Full postal address.....
.....

Copies of two issues (in triplicate) of a newspaper or newspapers circulating in the district in which the applicant resides each containing (clearly marked) an advertisement in the following form should accompany the application.

"Notice is hereby given that.....son/daughter/wife of.....is applying to the Secretary to the Government of India in the Ministry of Home Affairs for naturalisation and that any person who knows any reason why naturalisation should not be granted should send a written signed statement of the facts to the said Secretary."

(This form complete in all respects shall be e submitted in triplicate to the Collector/Deputy Commissioner/District Magistrate within whose jurisdiction the applicant is ordinarily resident for transmission to the Central Government through the State Government or the Union territory administration, as the case may be)

Documents to be attached with the application by the applicant

1. A copy of valid Foreign Passport.
2. A copy of valid Residential Permit.
3. A copy of Bank challan in original amounting to Rs.1500/- deposited in the State Bank of India under Head No."0070-Other Administrative Services-Other Services-Receipts under the Citizenship Act."
4. One affidavit from self (applicant) and two affidavits from two Indians testifying to the character of the applicant in the prescribed language available in the application form.
5. Two language Certificates certifying the applicant's knowledge in any one of the Indian languages specified in the Eighth Schedule of the Constitution. (A language certificate from a recognised educational institutions or from a recognised organisation or from two Indian citizens of the district of the applicant).
6. Two newspaper (circulating in the district in which the applicant resides) cuttings of different dates or of different newspapers notifying his intention to apply for citizenship in the prescribed language in the application form.

FORM IX

[Refer rules 11(2)]

THE CITIZENSHIP RULES, 2009

Acknowledgement for the application for grant of citizenship under sections 5(1)(a), (c), (d), (e), (f) and (g) of the Citizenship Act, 1955

Received application from Miss/Ms./Mr. d/o, w/o. s/o resident of for registration under clause (a) or (c) or (d) or (e) or (f) or (g) of sub-section (1) of section 5 of the Citizenship Act, 1955.

Note: - Strike out whichever is not applicable.

Dated.....

.....

Signature with seal of the receiving officer

FORM X

[Refer rule 14(1)]

THE CITIZENSHIP RULES, 2009

Government of India Ministry of Home Affairs certificate of registration

No.....

This is to certify that the person whose particulars are given below has been registered as a citizen of India under the provisions of section 5(1)(a)/(c)/(d)/(e)/(f) of the Citizenship Act, 1955.

1. Name

:

2. Name of father

:

3. Name of mother

:

4. Name of the husband/wife

:

5. Date of birth

:

6. Place of birth

:

7. Previous nationality

:

8. Occupation

:

9. Marks of identification

:

10. Address

:

.....

.....

.....

PHOTOGRAPH

Signature of Registered Person

Place of Issue.....

Date of Issue.....

.....

Signature and Seal of Issuing Authority

FORM XI

[Refer rule 14(2)]

THE CITIZENSHIP RULES, 2009

Government of India Ministry of Home Affairs certificate of registration

No.....

This is to certify that the person whose particulars are given below has been registered as a citizen of India under the provisions of section 5(1)(g) of the Citizenship Act, 1955

1. Name

:

2. Name of father

:

3. Name of mother

:

4. Name of the husband/wife

:

5. Date of birth

:

6. Place of birth

:

7. Previous nationality

:

8. Occupation

:

9. Certificate of Registration number, date and place of issue of[Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

:

10. Marks of identification

:

11. Address

:

.....

.....

.....

.....

PHOTOGRAPH

.....

Signature and Seal of Issuing Authority

Signature of Registered Person

Place of issue.....

Date of issue.....

FORM XII

[Refer rules 15(1) and 16(1)]

THE CITIZENSHIP RULES, 2009

Government of India Ministry of Home Affairs certificate of Naturalisation

No.....

Whereas.....has applied for a certificate of naturalisation, alleging with respect to himself (herself) the particulars set out below, and has satisfied the Government that the conditions laid down in the above mentioned Act for the grant of naturalisation are fulfilled in the case of the said

Now, therefore, in pursuance of the powers conferred by the said Act, the Government hereby grants to the said.....this certificate of naturalisation, and declares that, upon taking the oath of allegiance within the time and in the manner required by the rules made in that behalf he/she shall, subject to the provisions of the said Act, be entitled to all political and other rights, powers and privileges and be subject to all obligations, duties and liabilities to which an Indian citizen is entitled or subject to, and have to all intents and purposes the status of an Indian citizen.

In witness whereof I have hereto subscribed my name this day of

PHOTOGRAPH

.....

Signature and Seal of Issuing Authority

PARTICULARS

1. Name:.....
2. Address.....
3. Occupation.....
4. Place and date of birth.....
5. Previous nationality.....
6. Marital Status:.....
7. Mark of identification:.....
8. Name and nationality of wife/husband:.....
9. Name and nationality of father:.....
10. Name and nationality of mother:.....

Oath of allegiance

I, A-B, do solemnly affirm (or swear) that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully observe the laws of India and fulfil my duties as a citizen of India.

Signature.....

[Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken]

Designation.....

[Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken.]

Affirmed/Sworn and subscribed this.....day of 20..... before me.

Signature

[Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken.]

Designation

[Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken.]

FORM XIII

[Refer rule 17(a)]

THE CITIZENSHIP RULES, 2009

Register of the persons registered as Indian citizen under sections 5(1)(a),(e) & (f) of the Citizenship Act, 1955

S.No.

Name

Father's name

Date of Birth

Last permanent address outside India

Date from which resident in India

Present Address

Date of Registration

Remarks

1
2
3
4
5
6
7
8
9

Note. - Serial No. in this register should correspond with the number in the registration certificate.

FORM XIV

[Refer rule 17(b)]

THE CITIZENSHIP RULES, 2009

Register of persons registered as Indian citizens under section 5(1)(c) of the Citizenship Act, 1955

S.No

Full Name of Applicant and Address

Occupation

Place and Date of Birth

Nationality

Marital Status

Full Name and Address of husband/wife

Whether applicant has formally renounced or lost his/her former nationality or given an undertaking in writing to renounce it, if application is sanctioned Reference to documentary evidence furnished to be given

Particulars as to date and place of taking of oath of allegiance and actual issue of certificate

Reference letter from State Government for warding details of application

Remarks

1
2
3
4
5
6
7
8
9
10
11

Note. - Serial No. in this register should correspond with the number in the registration certificate.

FORM XV

[Refer rule 17(c)]

THE CITIZENSHIP RULES, 2009

Register of minor children registered as Indian citizens under section 5(1)(d) of the Citizenship Act, 1955

S. No.

Name

Father's Name

Date of Birth

Present Address

Remarks

1
2

3
4
5
6

Note. - Serial No. in this register should correspond with the number in the registration certificate.

FORM XVI

[Refer rule 17 (d)]

THE CITIZENSHIP RULES, 2009

Register of persons registered as Indian citizens under section 5 (1) (g) registered as Indian citizens under section 5 (1) (g) of the Citizenship Act, 1955

Sl.No.

Name

Father's name

Date of birth

Last Permanent Address outside India

Date from which resident in India

Present Address

Date of Registration

[Overseas Citizen of India cardholder]

[Substituted "overseas citizen" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Remarks

Certificate No.

Place & Date of issue

1
2
3
4
5
6
7
8
9
10
11

Note. - Serial No. in this register should correspond with the number in the registration certificate.

FORM XVII

[Refer rule 17 (e)]

THE CITIZENSHIP RULES, 2009

Register of certificate of naturalisation and oaths of allegiance under section 6 (1) of the Citizenship Act, 1955

S.No.

Full name and address

Profession of occupation

Place and date of birth

Previous nationality

Married, single, widower widow, divorced

Full name of wife/husband

Full name of parent

Date of certificate assigned and sent to the State Govt.

Attestation by Secretary/Joint Secretary, Deputy Secretary/Under Secretary Ministry of Home Affairs

Particulars as to date and place of taking of oath of allegiance and actual issue of certificate

Reference to letter from State Govt. forwarding details of application

Remarks

1
2
3
4
5
6
7
8
9
10
11
12
13

Note. - Serial No. in this register should correspond with the number in the registration certificate.

FORM XVIII

[Refer rule 19 (2)]

THE CITIZENSHIP RULES, 2009

(To be filed in quadruplicate)

Application for registration under section 6-A of the Citizenship Act, 1955

Photograph

1. Name in full of applicant

.....

(Block Capitals, surname first)

.....

2. Father's/Husband's name

.....

3. Date and Place of birth

.....

4. Sex, Height, Colour of eyes

.....

5. Whether of Indian origin-If so, how

.....

6. Present Nationality

.....

7. Occupation or profession

.....

8. Date and place of arrival inAssamfromBangladesh

.....

9. First address inAssamafter arrival

.....

10. Present address inAssam

.....

11. Date from which ordinarily resident inAssam

.....

12. Date and place of detection as a foreigner

.....

13. Name and address of the Tribunal declaring him as a foreigner; case number and date of order

.....

14. Name of husband/wife and children

.....

15. Physical identification marks of applicant

.....

(1)

(2)

16. Signature or thumb impression of applicant

.....

To be filled in by the officer of the Registering Authority

1. Registered at.....on.....20.....

2. Registration No.....

3. Finger prints of the registered person.

Date.....

Place.....

SEAL

.....

Name and signature of Registering Authority

Note. - A certified copy of the Tribunal Order should be attached with the 1st, 3rd and 4th copy of this application.

FORM XIX

[Refer rule 19 (3)]

THE CITIZENSHIP RULES, 2009

The names of the persons registered alongwith other particulars under section 6-A of the Citizenship Act, 1955 by the registering authority.....District, Assam

Serial No.

Name

Father's/Husband's Name

Date and Place of birth

Present Address

Number and date of the order declaring him, as a foreigner issued by Tribunal

Date since he has been ordinarily residing in Assam

Date of expiry of registration i.e. he/she completes 10 years from the date of declaration or registration whichever is later

Remarks if any

1

2

3

4

5

6

7

8

9

FORM XX

[Refer rule 19(4)]

The Citizenship Rules, 2009

List of persons who have been registered under section 6-A of the Citizenship Act, 1955 during the quarter ending in March/June/September/December, 20.....

S. No.

Name

Father's/Husband's name

Date and place of Birth

Present Address

Date of detection as foreigner by the Tribunal with case number and address of the Tribunal

Date of expiry of the registration

Remarks

1
2
3
4
5
6
7
8

Place.....

Date.....

SEAL

.....

Signature of Registering Authority

Distt.

FORM XXI

[Refer rule 22]

The Citizenship Rules, 2009

(To be filled in triplicate)

Declaration as required under section 6-A(6) of the Citizenship Act, 1955 to be filled in by the person who does not wish to become a citizen of India

Declaration

I,.....,son/daughter/wife of..... resident of (Full name and address) hereby solemnly declare that I do not wish to become a citizen of India nor to be governed by sub-sections (4) and (5) of section 6A of the Citizenship Act, 1955.

Date.....

Place.....

.....

Signature or thumb impression of the applicant.

To be filled in the office of Registering Authority

Registration No.....(Registration number is to be given after registering the foreigner under the Foreigners Act, 1946).

Date.....

Place.....

SEAL

.....

Signature of the Registering Authority.

[FORM XXII]

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

[Refer rule 23 (1)]

The Citizenship Rules, 2009

Declaration of renunciation of citizenship under section 8 of the Act made by citizen of India who is also a citizen or national of another country

1. I,(here insert name and address of declaration) am of full age and capacity and was born at (with Tehsil, District, State and Country)..... on.....

2. I have/have not been married.

3. I hereby renounce my citizenship of India.

4. I hereby renounce my citizenship of India and surrender my Indian Passport No..... with date of issue.....

5. Name and full particulars of minor children who are Citizens of India, if any.....

6. I am/was Indian citizen by (Birth/Descent/Registration/Naturalisation)

7. The circumstances in which/reasons due to which applicant intends to acquire foreign citizenship and renounce Indian citizenship.....

I,.....do solemnly and sincerely declare that the foregoing particulars stated in this declaration are true and I make this solemn declaration conscientiously believing the same to be true.

Signature.....

Made and subscribed this day of 20.....before me.

*Signature.....

*Designation.....

Particulars

1. Full name.....

2. Address.....

3. Profession or occupation.....

4. Place and date of birth.....

5. (Second) Nationality.....

6. Single, married, etc.....

7. Name of wife or husband.....

8. Names and nationalities of parents.....

9. Names and full particulars of children, if any.....

I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation that I am householder, and that I am not the solicitor or agent of I vouch for the correctness of the statements made by in his application for

Date.....

Signature.....

Name (in BLOCK LETTERS).....

.....

Full Postal address.....

.....

* Signature and designation of the officer authorised under rule 38 of the Citizenship Rules, 2009, before whom the registration, declaration or oath of allegiance is made or taken.

Form XXIII

[Refer rule 23(2)]

The Citizenship Rules, 2009

Acknowledgement for the declaration of renunciation of citizenship of India under section 8 of the Citizenship Act, 1955

Received declaration of renunciation of Indian citizenship under section 8 of the Citizenship Act, 1955 from Miss/Ms./Mrd/o, w/o, s/o.....resident of..... along with his/her Indian Passport No.....with date of issue.....

Date.....

.....

Signature with seal of the receiving officer

[FORM XXIV]

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

[See rule 23(3)]

The Citizenship Rules, 2009

Certificate of Renunciation of Indian Citizenship Under Rule 23 of The Citizenship Rules, 2009

This is to certify that the person whose details are given below has voluntarily renounced the Indian citizenship and pursuant to section 8 of the Citizenship Act, 1955, he/ she shall cease to be a citizen of India with effect from the date of issue of this certificate:

1. Name:

2. Father's name:.....

3. Mother's name:.....

4. Date of Birth:.....

5. Place of Birth:.....

6. Indian Passport No.:.....

7. Address ::.....

8. He/ she has acquired the citizenship of India by Birth/ Descent/ Registration/ Naturalization

.....Signature and seal of the Issuing AuthorityName :

Designation:

Place of Issue:.....

Date of Issue :

[Form XXIV-A]

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

[See rule 23(4)]

The Citizenship Rules, 2009

Register of Declarations of Renunciation of Indian Citizenship

S. No.

Full name of declarant and address

Profession or occupation

Place and date of birth

Nationality of declarant's parents

Full names of parents

Married, single, widower, widow or divorced

Place where and date when declaration made

Mode of acquisition of Indian citizenship by

the applicant by Birth/ Descent/ Registration / Naturalization

The circumstances in which/ reasons due to

which applicant intends to acquire foreign citizenship and

renounce Indian citizenship

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

This Form when completed should be forwarded in triplicate to the Chief Secretary to the Government of the State in which applicant is resident.

Form XXV

[Refer rule 24 (1)]

The Citizenship Rules, 2009

Declaration of intention to resume Indian citizenship under Section 8 (2) of the Act made by a person who has ceased to be Indian citizen on the loss of Indian citizenship by his parents in accord with the provisions of section 8 (1) of the Citizenship Act, 1955

1. I,..... (here insert name and address of declarant) was born at on

2. My Father's full name is.....

3. My Mother's full name is.....

4. I ceased to be an Indian citizen by virtue of sub-section (1) of section 8 of the Citizenship Act, 1955, on by reason of the fact that.

[Here state the cause whereby the declarant's father/mother and the declarant ceased to be Indian citizens, the year and

The Citizenship Rules, 2009

date in which they ceased to be Indian citizens and all other relevant information].

5. If I had not so ceased to be an Indian citizen, I would now be an Indian citizen by reason of the fact that
[Here state the grounds on which the declarant claims that he or she would have been such a citizen.]

6. I hereby declare my intention to resume Indian citizenship and apply to the Central Government to register this declaration.

I, A-B, do solemnly and sincerely declare that the foregoing particulars state in this declaration are true and I make this solemn declaration conscientiously believing the same to be true.

Signature.....

I, the undersigned, hereby state that I am an Indian citizen otherwise than by naturalisation that I am a house-holder and that I am not the solicitor or agent of I vouch for the correctness of the statements made by in his application for

Date.....

Signature.....

Name (in BLOCK LETTERS).....

Full postal address.....

.....

Oath of allegiance

I, A-B, do solemnly affirm (or swear) that I will bear true faith and allegiance to the Constitution of India as by law established, and that I will faithfully observe the laws of India and fulfil my duties as a citizen of India.

Signature.....

Designation.....

Affirmed/Sworn and subscribed this..... day of..... 20before me.

Signature.....

Designation.....

PARTICULARS

1. Full
name.....

.....

2. Address.....

.....

3. Profession or
occupation.....

.....

4. Place and date of
birth.....

.....

5. Nationality.....

.....

6. Single, married,
etc.....

.....

7. Name of wife or
husband.....

.....

8. Name and nationalities of
parents.....

....

FORM XXVI

[Refer rule 24(4)]

The Citizenship Rules, 2009

The Citizenship Rules, 2009

Government of India Ministry of Home Affairs certificate of resumption of Indian citizenship

No.....

This is to certify that the person whose particulars are given below has with immediate effect, resumed being citizen of India, under the provisions of the proviso to section 8(2) of the Citizenship Act, 1955.

1.

Name.....

2. Name of father.....

3. Name of mother.....

4. Name of husband/wife.....

5. Date of birth.....

6. Place of birth.....

7. Occupation.....

8. Marks of Identification.....

9. Address.....

PHOTOGRAPH

Signature of registered person

Place of Issue.....

Date of Issue.....

Signature and Seal of Issuing Authority

FORM XXVII

[Refer rule 24(5)]

The Citizenship Rules, 2009

Register of declarations of resumption of Indian citizenship

Sl. No.

Fullname of declarant and address

Profession or occupation

Place and date of birth

Nationality of declarant's parents

Full name of parents

Married, single, widower, widow or divorced

Place where and date when declaration made

Reference to orders etc. from Ministry of Home Affairs

Attestation by Secretary, Joint Secretary, Deputy Secretary/Under Secretary, Ministry of Home Affairs

Reference to letter alongwith which declaration of resumption received

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

This form when completed should be forwarded in triplicate to the Chief Secretary to the Government of the State in which the applicant is resident.

[Form XXVIII]

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018 (w.e.f. 25.2.2009).]

[See rule 29(1)]

The Citizenship Rules, 2009

Application For Registration As An Overseas Citizen of India Cardholder Under Section 7a of The Citizenship Act, 1955

Note: Please see Instructions before filling up the form.

Indian Origin Applicant

Part A

Affix your photo of size 51 x 51 mm

Personal Particulars (as in Passport)

Signature /Left thumb impression [in case of those who cannot sign]

1

Surname

2

Middle Name

3

Given Name

4

Other names [If you are known by any other name(s)]

5

Gender

[Male/Female/Transgender]

6

Date of birth

7

Place of birth (in India/abroad)

[Mention District, City, State, Country]

8

Marital Status

[Unmarried/ Married/ Separated / Divorced/

Widowed / Widower]

9

Visible Distinguishing Marks on the body

10

Present nationality [along with National

Identification Number, if available]

11

Whether holding dual

nationality? if yes, mention country and passport details

(a) Country Passport

number:

(b) Country Passport number:

12

Previous nationality held (if any) [Mention

Passport Number and Date of renunciation (if any)]

Family Details

13

Father's Name

14

Father' Nationality

15

Father's profession

16

Mother's Name

17

Mother's Nationality

18

Mother's profession

19

Spouse Name

20

Spouse Nationality

21

Spouse profession

22

Date of Birth of spouse

23

Date of Marriage

24

Spouse Passport Number

25

Spouse passport issue place and validity of
passport

26

Name of Root Indian Citizen or Root Indian

person eligible to be Indian Citizen and his/her Relationship
with the applicant

Passport details of applicant

27

Passport number

28

Place of issue

29

Date of issue and expiry date

30

Previous passport number if any.

Occupation details

31

Occupation [Specific field of work]

32

Employer's address

33

Employer's contact number

34

If retired, from which Department/ Office/
Organization

Applicant's contact details

35

Present complete address (India and abroad)

36

Phone number

37

Email address

38

Mobile number

Spouse Based Applicant

Part A:

Affix your photo of size 51 x 51 mm

Personal Particulars (as in Passport)

Signature /Left thumb impression [in case of those who cannot
sign]

1

Surname

2

Middle Name

3

Given Name

4

Other names [If you are known by any other
name(s)]

5

Gender

[Male/Female/Transgender]

6

Date of birth

7

Place of birth (in
India/abroad)

[Mention District, City, State, Country]

8

Marital Status

[Married/ Separated / Divorced/

Widowed / Widower]

9

Visible Distinguishing Marks on the body

10

Present nationality [along with National

Identification Number, if available]

11

Whether holding dual

nationality? if yes, mention country and passport details

(a) Country Passport

number

(b) Country Passport number

12

Previous nationality held (if any) [Mention

Passport Number and Date of renunciation (if any)]

Family Details

13

Father's Name

14

Father' Nationality

15

Father's profession

16

Mother's Name

17

Mother's Nationality

18

Mother's profession

19

Spouse Name

20

Spouse Nationality

21

Spouse profession

22

Date of Birth of spouse

23

Date of Marriage

24

Whether married in India or abroad?

25

If marriage is solemnised in India, whether

marriage registered with the Registrar of Marriages ?

26

If marriage is solemnised abroad, whether the

marriage certificate is Apostled / certified by the Indian

Mission/Post concerned?

27

Whether marriage still subsisting?

Yes / No

28

Spouse passport number

29

Spouse local address abroad

30

Spouse passport issue place and validity of
passport

31

Is your Spouse an

Overseas Citizen of India cardholder?

If yes, please mention spouse card registration
no., date of issue and place of issue

Yes / No

32

Whether you have more
than one living spouse?

If Yes, give details

Yes / No

33

Whether your spouse
has any other living spouse?

If Yes, give details

Yes / No

Passport details

34

Passport Number

35

Place of issue

36

Date of issue and expiry date

37

Previous passport number (if any).

Occupation details

38

Occupation

39

Employer's address

40

Employer's contact number

41

If retired, from which Department/ Office/
Organisation

Applicant's contact details

42

Present complete address (India and abroad)

43

Phone number

44

Email address

45

Mobile number

Minor child

Part - A:

Affix your photo of size 51 x 51 mm

Personal Particulars (as in Passport)

Signature / Left thumb impression [in case of those who cannot sign]

1

Surname

2

Given Name

3

Other names [If you are known by any other name(s)]

4

Gender

[Male/Female/Transgender]

5

Date of birth

6

Place of birth (in

India/abroad)

[Mention District, City, State, Country]

7

Visible Distinguishing Marks on the body

8

Present nationality [along with National Identification Number, if available]

9

Whether holding dual nationality? if yes, mention country and passport details

(a) Country Passport number (b) Country Passport number

10

Previous nationality held [Mention Passport/Renounced (if any)]

Family Details

11

Father's Name

12

Father's Nationality

13

Father's profession

14

Mother's Name

15

Mother's Nationality

16

Mother's profession

17

Name of Root Indian Citizen or Root Indian

person eligible to be Indian Citizen and his/her Relationship with applicant

Passport Details

18

Passport number

19

Place of issue

20

Date of issue and expiry date

21

Previous passport if any.

Applicant's contact details

22

Present complete address (India and abroad)

23

Phone number

24

Email address

25

Mobile number

Part B ? Other details of Applicant(s) [Applicable to all categories]

1

Have you/any member
of your family applied for Overseas Citizen of India registration
earlier?

If yes, give details:

Yes/No

{|

Name and Relationship

Reference No.

Date when applied

Place where applied

Status [Granted/ Not yet]

|-

| 2

| Have you

surrendered/got your previous Overseas Citizen of India card
cancelled?

Please mention number and date of issue of
previous Overseas Citizen of India card

| Yes/ No

|-

| 3

| Whether the applicant
had ever been a citizen of Pakistan or Bangladesh at any time?

If yes, give specific details:

| Yes/No

|-

| 4

| Whether either of
parents or grandparents or great-grandparents of the applicant
had ever been a citizen of Pakistan or Bangladesh at any time?

If yes, give specific details:

| Yes/ No

| -
| 5
| (a) Whether the
applicant (other than the minor child / children) has worked / is
working in Armed Forces/Paramilitary/Police/Security/Intelligence organizations?
If yes, give specific details:
Yes/ No
(b) Have you
undergone compulsory military/police/home conscription/training
in your native country?
If yes, period of compulsory training:
Yes/ No
-
(c) Are you still serving in armed / police
forces beyond compulsory training period prescribed by rule in
that country(Not applicable to a minor child)?
Yes/ No
-
6
Date and method of acquisition of present
nationality (By Birth / Descent / Registration /Naturalisation)
-
{
-
Applicant's Name
Method of Acquisition
of present nationality
Date of Acquisition
-
}
-
-
7
Details of Family members/relatives who are
staying in India, if any (for Indian reference only)
-
{
-
Sl. No.
Name
Present address
Relationship

| Age

| -

|

|

|

|

|

|}

| -

|

|

|

| -

| 8

| Have you sought
asylum (political or otherwise) in any country before applying
for citizenship?

If Yes, please give full particulars/details:

| Yes/No

| -

| 9

| Have you ever been
convicted by Court of Law of any country?

If Yes, please give full particulars/details:

| Yes/ No

| -

| 10

| Have you ever been
refused entry/deported by any country including India?

If Yes, please give full particulars/details:

| Yes/ No

| -

| 11

| Have you been
associated with any organisation (Government or non-Government)/
Political Party/ Group accused of or guilty of any rights
violation?

If Yes, please give full particulars/details:

| Yes/ No

| -

| 12

| Have you ever been
engaged in human trafficking/ drug trafficking/ child abuse/
crime against women/ Economic offense/ Financial Fraud ?

If Yes, please give full particulars/details:

| Yes/ No

| -

| 13

| Have you ever been
engaged in cyber crime/ terrorist activities/ sabotage/
espionage/ genocide/ political killing/ other acts of violence?

If Yes, please give full particulars/details:

| Yes/No

| -

| 14

| Have you ever, by any means or medium, expressed views that justify or glorify terrorist violence or that may encourage others to terrorist acts or other serious criminal acts ?

If Yes, please give full particulars/details:

| Yes / No

| -

| 15

| Details of Criminal Proceedings against the applicant, if any, anywhere

|

| -

|

Sl. No.

Applicant's Name

Date of Incidence

Place of Incidence

Nature of Incidence

Outcome of criminal proceedings, if any

| -

| 16

| Whether applicant is -

|

| -

|

| (a) Currently under any investigation

| Yes/No

| -

|

| (b) Wanted for questioning

| Yes/No

| -

|

| (c) Facing charges for any offence in any country

| Yes/No

| -

|

| If Yes, please give details:

|

| }

Declaration

1. (Name of the applicant) solemnly and sincerely declare that foregoing particulars stated on this application are true and I make this solemn declaration consciously believing the same to be true. In case the information is found to be false at any stage, I am liable for legal action/cancellation of registration as Overseas Citizen of India cardholder/deportation/ blacklisting or any other action as deemed fit by the Government of India. I have no objection to share the requested personal particulars for processing of Overseas Citizen of India card by the security agencies.

2. I shall not use the Overseas Citizen of India card for undertaking any TABLIGH activities in India.
3. I shall not use the Overseas Citizen of India card for undertaking any missionary or mountaineering activities or Research in India without prior permission from the competent authority designated by the Government of India.
4. In the event of dissolution of marriage or marriage to another foreigner or death of Indian spouse, I shall surrender my card to the issuing authority or mission [applicable to spouse based applications].

Signature of the Applicant

Date:

Place:

*Application for Minor child

I am a parent/ legal guardian**/ legal adoptee parent of to whom the foregoing particulars relate. I hereby apply on behalf of my/ the child for his/ her registration as an Overseas Citizen of India Cardholder.

Date:

Place:

Signature of the Applicant

* To be filled only for minor applicant

** In the case of legal guardian, enclose proof of guardianship

*** In the case of legal adoptee parent, enclose legal adoption documents.

FORM XXIX

[Refer rule 33 (1)]

The Citizenship Rules, 2009

Certificate of registration

([Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

)

No.....

This is to certify that the person whose particulars are given in this certificate has been registered as an [Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under the provisions of Section 7A of the Citizenship Act, 1955.

Photograph

1. Surname.....
2. Given Name(s).....
3. Nationality.....
4. Sex.....
5. Date of Birth.....
6. Place of Birth.....
7. Occupation.....
8. Name of Father/Legal Guardian.....
9. Name of Mother.....
10. Address.....
11. Passport No.....Date of issue.....Place of Issue.....
12. Visible Distinguishing Mark of OCI Certificate Holder
13. File No.....

Photograph

Place of issue.....

Date of issue.....

.....

Signature and Seal of issuing authority

FORM XXX

[Refer rule 33 (3) and 35(3)]

The Citizenship Rules, 2009

Register of persons registered as [Overseas Citizen of India cardholder]
[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]
under section 7-A and is cancelled under section 7-D of the Citizenship Act, 1955

S. No.

Fullname and address of the applicant

Father's name

Place & date of birth

Nationality

Last permanent address outside India

Date from which resident in India

Date & place of registration

Date and place in case of renunciation

Date and place in case of cancellation and U-visa No.

Remarks

1

2

3

4

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Note. - Serial No. in this register should correspond with the number in the registration certificate.

[Form XXXI]

[Substituted by Notification No. G.S.R. 1049(E), dated 18.10.2018.]

[See rule 34 (1)]

The Citizenship Rules, 2009

Declaration of The Renunciation of The Card Registering As An Overseas Citizen of India Cardholder Under Section 7c(1) of The Citizenship Act, 1955 Made By An Overseas Citizen of India Cardholder

1. I,(here insert full name and address of declarant) am of full age and capacity and was born at on

2. I am registered as an Overseas Citizen of India cardholder.

3. I hereby renounce my Overseas Citizen of India cardholder and surrender* the Certificate of registration No.....dated.....issued at.....

4. I,..... do solemnly and sincerely declare that the foregoing particulars stated in this declaration are true, and I make this solemn declaration conscientiously believing the same to be true.

Date.....

Signature.....

Made and subscribed this.....day
of.....20.....before me.

**Signature.....

**Designation.....

Particulars

1. Name..... Full

2. Address.....

3.

The Citizenship Rules, 2009

Occupation.....
..
4. Place and date of birth.....

5. Nationality.....
6. Name of wife or husband.....

7. Number and date of certificate of registration as an Overseas Citizen of India cardholder.....

8. Name and full particulars of minor children who are registered as Overseas Citizen of India cardholder, if any.....

*Please attach original certificate of registration with the declaration.

**Signature and designation of the officer of the designated authority specified under rule 34 of the Citizenship Rules, 2009.

FORM XXXII

[Refer rule 34 (2)]

The Citizenship Rules, 2009

Acknowledgement

Received declaration of renunciation of [Overseas Citizen of India cardholder]

[Substituted "overseas citizenship of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

under section 7C(1) of the Citizenship Act, 1955 from Miss/Ms./Mr. D/o, W/o, S/o,..... resident of alongwith Certificate of Registration No..... dated..... issued at.....His U-visa No..... issued at..... on.....is cancelled.

Date.....

Signature with seal of the Receiving Officer

FORM XXXIII

[Refer rule 37)]

The Citizenship Rules, 2009

Certified that whose particulars and photograph are furnished below, has satisfied the conditions laid down in the Constitution of India/Citizenship Act, 1955 and is accordingly recognised as a citizen of India.

PARTICULARS

1. Age.....

2. Height.....

3. Hair.....

4. Eyes.....

5. Special peculiarities and identification marks.....

6. Name and Surname.....

(in BLOCK LETTERS)

The Citizenship Rules, 2009

7.	Date	of
birth.....		
.....		
8.	Nationality	of
origin.....		
.		
9.	Surname	and
		forenames
father.....		
(in BLOCK LETTERS)		
10.	Occupation	or
profession.....		
11.		Present
address.....		
.....		
Photograph		
Signature of the grantee.....		
Place of Issue.....		
Date of Issue.....		
.....		
Signature of the Issuing Authority		

II

[Refer rule 26]

THE CITIZENSHIP RULES, 2009

1.

(1)

When the Central Government refers the case of a citizen of India to a Committee of Inquiry under sub-section (3) of section 10 (which relates to deprivation of citizenship of India), the Committee of Inquiry (in this Schedule referred to as "the Committee") shall before holding the inquiry, cause notice to be given to the person to whom the inquiry relates, stating the time and the place where it will be held and the nature thereof and informing him that he will be entitled to be present and/or to be represented by counsel or solicitor, or if the Committee think fit, by some other person approved by them.

(2)

A notice under this rule may be given, -

(a)

in a case where the address of the person concerned is known, by causing the notice to be delivered to him personally or by sending it to him to the address by post;

(b)

in a case where that person's address is not known, by sending it to his last known address and in such manner, if any, as the Chairman of the Committee shall consider fit.

(3)

A notice as aforesaid shall be given such time (not being less than 30 days) before the holding of the inquiry, as the Chairman of the Committee shall consider reasonably necessary.

2. A notice under paragraph 1 may require the person concerned to answer it in writing and to furnish in writing to the Committee any information, which they consider material, to be verified in such manner, as they may be required.

3. The Committee shall, while inquiring into any matter under sub-section (6) of section 10 of the Act have all the powers of a Civil Court trying a suit under the Code of Civil Procedure, 1908 (5 of 1908) and, in particular, in respect of the following matters, namely:-

(a)

summoning and enforcing the attendance of any person and examining him on oath;

(b)

discovery and production of any document;

(c)

receiving evidences on affidavit;

(d)

issuing commission for the examination of witnesses or documents.

4. The Committee may act upon any information, which is available whether or not such information is given on oath or would be admissible as evidence in a court.

5. The Committee may invite any Government department or Ministry of the Government of India, which appears to them to be interested to appoint a person to represent the department or Ministry at the inquiry.

6.

(1)

The committee may act notwithstanding any vacancy in their number, and the quorum of the Committee shall be two.

(2)

The Committee may delegate one or more of their members to inquire into any particular matter relating to the inquiry, and the member or members so delegated shall, for this purpose, have all the powers of the Committee under sub-paragraph (1) of paragraph 3.

7. The committee may postpone or adjourn the inquiry from time to time.

8. The Committee may allow or refuse to allow the public or any portion thereof to be present during the whole or any part of the inquiry.

9. Subject to the foregoing paragraphs, the procedure at the inquiry shall be such as the Committee may determine.

III

[Refer rule 40(2)]

THE CITIZENSHIP RULES, 2009

1. Where it appears to the Central Government that a citizen of India has voluntarily acquired the citizenship of any other country, it may require him to prove within such period as may be fixed by it in this behalf, that he has not voluntarily acquired the citizenship of that country; and the burden of proving that he has not so acquired such citizenship shall be on him.

2. For the purpose of determining any question relating to the acquisition by an Indian citizen of the citizenship of any other country, the Central Government may make such reference as it thinks fit in respect of that question or of any matter relating thereto, to its Embassy in that country or to the Government of that country and act on any report or information received in pursuance of such reference.

3. The fact that a citizen of India has obtained on any date a passport from the Government of any other country shall be conclusive proof of his having voluntarily acquired the citizenship of that country before that date.

4. Where a person, who has become an Indian citizen by virtue of the Goa, Daman and Diu (Citizenship) Order, 1962, or the Dadra and Nagar Haveli (Citizenship) Order, 1962, issued under section 7 of the Citizenship Act, 1955 (57 of 1955

) holds a passport issued by the Government of any other country, the fact that he has not surrendered the said passport on or before the 19th January, 1963 shall be conclusive proof of his having voluntarily acquired the citizenship of that country before that date.

5. In determining whether a citizen of India has or has not voluntarily acquired the citizenship of any other country, the Central Government may take the following circumstances into consideration, namely: -

(a)

whether the person has migrated to that country with the intention of making it his permanent home;

(b)

whether he has in fact taken up permanent residence in that country; and

(c)

any other circumstances relevant to the purpose.

6. Notwithstanding anything contained in paragraph 4, a citizen of India who leaves or has left India without a travel document issued by the Central Government and resides outside India for a period exceeding three years, shall be deemed to have voluntarily acquired the citizenship of the country of his residence.

7. Notwithstanding anything contained in paragraph 4, a citizen of India shall be deemed to have voluntarily acquired the citizenship of Pakistan -

(a)

if he has migrated to Pakistan with the intention of making it his permanent home; or

(b)

if he has obtained any certificate of domicile in Pakistan or declared himself to be a citizen of Pakistan or of Pakistan domicile; or

(c)

if he has applied for and obtained, a right, title or interest in evacuee property in Pakistan; or

(d)

if he has obtained a temporary permit for entry into India from Pakistan.

Explanation.- For the purpose of clause (a) of this paragraph, a person shall not be deemed to have migrated to Pakistan with a view to making that country his permanent home -

(i)

if he has left for a place in West Pakistan with a "no objection certificate" and has returned to India under such permit for permanent return or resettlement as may have been issued by or under the authority of any law in force in India or of the Government of India, or

(ii)

if having left India at any time between the 1st February, 1950 and the 15th October, 1952, for a place in West Pakistan, he has returned to India with a repatriation certificate issued by or under the authority of any law in force in India or of the government of India.

IV

(Refer rule 41)

THE CITIZENSHIP RULES, 2009

TABLES OF FEES

Sl. No.

Matter in which fee is to be taken

Amount of fee

In India

(Rs.)

Elsewhere

(Rs.)

(1)

(2)

(3)

(4)

1.

Registration as a citizen of India under section 5 of the Act.

(i) Under sections 5(1)(a) and 5(1)(b)

5,000

(ii) Under section 5(1)(c)

10,000

15,000

(iii) Under sections 5(1)(d) and 5(4)

3,000

4,000

(iv) Under sections 5(1)(e), 5(1)(f) and 5(1)(g)

5,000

2.

Naturalization as a citizen of India under section 6(1) of the Act.

(i) with application

1,500

(ii) grant of certificate of naturalization

13,500

3.

Grant of a certificate of naturalization in case of doubt.

5,000

4.

Witnessing the signing of an application or declaration mentioned in rule 38 of these Rules, administering the oath of allegiance

500

1,000

5.

Registration of a declaration of intention to resume Indian citizenship or renunciation of citizenship

5,000

7,000

6.

Supplying a certified true copy of any notice, certificate, order, declaration or entry given, granted or made by or under the Act.

500

7.

Supplying a certified copy of a certificate of naturalization.

2,000

8.

Registration as an[Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]
under Section 7-A of the Act.*

US \$ 275 or an amount equivalent in local currency

US \$ 275 or an amount equivalent in local currency

9.

Renunciation of[Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

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US \$ 275 or an amount equivalent in local currency

US \$ 25 or an amount equivalent in local currency

10.

Re-issuance of certificate to[Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

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US \$ 275 or an amount equivalent in local currency

US \$ 25 or an amount equivalent in local currency

11.

Issuance of duplicate certificate to[Overseas Citizen of India cardholder]

[Substituted "overseas citizen of India" by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

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US \$ 275 or an amount equivalent in local currency

US \$ 100 or an amount equivalent in local currency

[* * *]

[Omitted No. 12 by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

[* * *]

[Omitted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

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[Omitted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

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[Omitted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

[* * *]

[Omitted No. 13 by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

[* * *]

[Omitted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

[* * *]

[Omitted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

[* * *]

[Omitted by Notification No. G.S.R. 35(E), dated 16.1.2015 (w.e.f. 25.2.2009)]

Note. - Out of the fee charged , a sum of US \$ 25 or an equivalent amount in local currency shall be non-refundable.

The balance amount shall be refunded in case the application is not accepted.

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Translation